Case Number: PC-2023-02239
Filed in Providence/Bristol County Superior Court
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Envelope: 4299687
Reviewer: Carol M.

Purchase Price, subject to satisfaction of the contingencies identified below, Violet proposes to procure a release and satisfaction of the Loan and assume the current loan from Merchants Bank of Indiana in the principal amount of $9,000,000 for a total of $9,500,000 (the "Purchase Price") . Merchants Bank has approved the basic terms of the loan assumption as set forth on Appendix B. The Purchase Price shall be paid as follows:

1. On or before September 29, 2023, and subject to the granting of a first lien on receivables and entering into a Note and Security Agreement satisfactory to the Parties, Pawtucket ASC ("Lender") shall loan the Facility $500,000 (the "Loan"). At Closing, Violet shall assume the obligations of Pawtucket SNF Real Estate, LLC under that mortgage in favor of Merchants Bank of Indiana recorded at Book L4947, Page 244 of the Land Evidence Records of the City of Pawtucket (the "Mortgage") subject to the principal amount due and owing being $9,000,000 and provided the proceeds were utilized as set forth in the Management Agreement, the Loan shall be forgiven.

Management Pending Regulatory Approvals and Closing:

Pawtucket Administrative Services Company LLC ("Pawtucket ASC") shall enter into a Court-approved interim advisory agreement with the Receiver, attached hereto as Appendix A and incorporated as if fully set forth wherein Pawtucket ASC shall provide advisory services to the Facility as set forth in the Interim Advisory Agreement, from October 16, 2023 and during the regulatory approval process and up and until the closing hereunder (the "Advisory Term") unless sooner terminated by either party as permitted therein.